(*b*) the reference to the Commissioner of Police in section 92(1) of the Criminal Procedure Code 2010 is to be read to include the Controller.".

PART 3

AMENDMENTS RELATING TO APPREHENSION

Amendment of Mental Health (Care and Treatment) Act 2008

13. *In the Mental Health (Care and Treatment) Act 2008, in section 7 —*

(*a*) *in subsection (1), replace "any person believed to be dangerous to himself or herself or other persons and such danger is reasonably suspected to be attributable to a mental disorder and take the person" with "any person ("*P*") where the police officer or special police officer believes that* P *may endanger* P*'s or any other person's life or personal safety, and* P*'s conduct is reasonably suspected to be attributable to a mental disorder, and take* P*"; and*

(*b*) *in subsection (2), replace paragraph (*a*) with —*

"(*a*) *a police officer's or special police officer's reasonable belief that* P *is endangering* P*'s life or personal safety is sufficient basis for the police officer's or special police officer's reasonable suspicion that* P*'s conduct is attributable to a mental disorder;*

(*aa*) *it is sufficient that the danger to life or personal safety is only reasonably likely to occur and need not be imminent, and actual harm is not required; and*".

Amendment of Police Force Act 2004

14. *In the Police Force Act 2004 —*

(*a*) *in Part 3, replace the Part heading with —*

"DUTIES, DISCIPLINE AND POWERS OF POLICE OFFICERS";

(*b*) *in section 26A(1), after "Sections", insert "26AA,";*

(*c*) *in section 26A(2), after "sections", insert "26AA,";*

(*d*) *after section 26A, insert —*

"**Manner of apprehension in attempted suicide cases**

26AA.—(1) *In apprehending a person whom a police officer reasonably suspects is about to or has attempted to commit suicide —*

(*a*) *the police officer must touch or confine the body of the person to be apprehended unless the person submits to the apprehension by word or action; and*

(*b*) *if the person forcibly resists or tries to evade apprehension, the police officer may use all reasonable means necessary to apprehend the person.*

(2) *The person apprehended must not be restrained more than is necessary to prevent his or her escape.*

(3) *If an apprehended person in lawful custody escapes or is rescued, the person from whose custody he or she escaped or was rescued, or any police officer, may immediately pursue and apprehend him or her for the purpose of returning him or her to the place where he or she was in lawful custody.*

(4) *Section 26B applies to any apprehension under subsection (3) even if the person making the apprehension is not a police officer having authority to apprehend.*

(5) *Every person is bound to help a police officer authorised to make an apprehension who reasonably demands the person's aid in apprehending a person whom the police officer is authorised to apprehend.*";

(*e*) *in section 26B, after subsection (2), insert —*

"(2A) *Whenever it is necessary to cause a woman to be searched under subsection (1)(*b*), the search must be made by a police officer who is a woman and with strict regard to decency.*";

(*f*) *in section 26B, after subsection (5), insert —*

"(6) *A police officer may break open a place to free himself or herself or any other person who, having lawfully gone inside to make a search under subsection (1)(*a*), is detained in it.*"; and

(*g*) *after section 26E, insert —*

"**Powers upon apprehension of person in non-suicide cases**

26F.—(1) *Subject to subsection (2), this section applies where a police officer apprehends any person under any written law prescribed in the Police Regulations.*

(2) *This section does not apply where an apprehension is carried out in relation to a person whom the police officer reasonably suspects is about to or has attempted to commit suicide and to which sections 26A to 26D apply.*

(3) *Division 3 of Part 6 of the Criminal Procedure Code 2010 applies to an apprehension mentioned in subsection (1) as it applies to an arrest, with any exception or modification that the Minister may prescribe in the Police Regulations.*

(4) *For the purposes of subsection (3), the Minister may prescribe different modifications with respect to*

different provisions of written law mentioned in subsection (1).".

PART 4

OTHER AMENDMENTS

Amendment of Singapore Corporation of Rehabilitative Enterprises Act 1975

15. In the Singapore Corporation of Rehabilitative Enterprises Act 1975 —

(*a*) after section 17, insert —

"**Corporation's symbol or representation**

17A.—(1) The Corporation has the exclusive right to the use of one or more symbols or representations as the Corporation may select or devise (each called the Corporation's symbol or representation), and to display or exhibit those symbols or representations in connection with the Corporation's activities or affairs.

(2) A person who, without the prior written permission of the Corporation —

(*a*) uses a symbol or representation identical to the Corporation's symbol or representation; or

(*b*) uses a symbol or representation which so resembles the Corporation's symbol or representation as to deceive or to cause confusion, or to be likely to deceive or to cause confusion,

shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 6 months or to both and, in the case of a continuing offence, to a further fine not exceeding $250 for every day or part

of a day during which the offence continues after conviction.";

(*b*) in section 36, renumber subsection (1) as section 36; and

(*c*) in section 36, delete subsection (2).
